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NATIONAL

Residents sue San Jose in federal court over automated license-plate reader cameras

By Robert Salonga, The Mercury News *The Tribune Content Agency*

Updated April 15, 2026 4:57 PM

SAN JOSE, Calif. - Three San Jose residents backed by a national justice nonprofit have filed a federal lawsuit alleging that the city's [vast network of automated license-plate reader cameras](#) violate the Constitution by subjecting citizens to nonstop warrantless surveillance.

The Wednesday filing, helmed on behalf of the plaintiffs by the Virginia-based Institute for Justice, parallels a [November state lawsuit](#) against the city by the Electronic Frontier Foundation and ACLU of Northern California. The earlier litigation demands that San Jose police obtain a judicial warrant every time they comb through the hundreds of millions of license plate images captured every year.

The new lawsuit asks the federal court for the Northern District of California to declare the surveillance a Fourth Amendment violation and require police to delete camera data within 24 hours of capture unless they secure a specific warrant.

San Jose's data retention policy for the camera data allows the city to hold images for 30 days, after the police department and City Council recently approved policy changes [decreasing the retention time from a year and designating protected spaces](#) free from the cameras' monitoring, including places of worship, reproductive healthcare clinics and consulate offices. There are currently 474 ALPR cameras, contracted through Flock Systems, installed throughout the city.

Michael Soyfer, an attorney for the Institute for Justice, called the guardrails installed by the city "symbolic" and said that people living in and passing through San Jose remain subject to unwarranted tracking of their movements.

"They're ordinary people driving over to their places of worship, to loved ones, to health care, appointments, and otherwise going about their daily routine. Yet their movements are being tracked and compiled in a government database," Soyfer said. "None of (law enforcement) need a warrant, none of them needs to go to a judge. None of them need probable cause. Ordinary people shouldn't have to live their lives in a fishbowl, knowing that the government is tracking where they drive, and compiling that information in a database, potentially to be used against them later."

Tony Tan, a 27-year-old downtown San Jose resident who is a plaintiff alongside fellow San Jose residents Scott West and Colin Wolfson, said Wednesday that his experiences as a software engineer working in data privacy pull into focus his concerns about being watched by authorities on a whim, since he has to drive past a Flock camera every time he leaves and returns home.

"I don't think it's reasonable for the government to keep track of where people go every day, and I am especially concerned under the current federal administration, because I also volunteer as a legal observer to protect immigrants' rights," Tan said. "I would not want to have the Flock system here in San Jose, ready for ICE, or other federal agencies, to abuse."

Tan was alluding to accusations and suspicions - which have been denied by the city and police department - about the ALPR data being accessed by federal authorities and immigrations agents in violation of state law and Santa Clara County's sanctuary policy.

A security analyst [conducting research for this news organization](#) found that as recently as June 2025, San Jose police fulfilled plate data searches requested by other California agencies in instances the analyst described as tied to federal authorities, including inquiries related to ICE protests. The city has maintained that searches that included terms "DEA," "ICE" and "HSI," while

perhaps troubling at first glance, were not actually conducted on behalf of federal agencies.

In a statement, City Attorney Susana Alcala Wood defended the city's use of the plate-reader cameras and contended that police follow "robust, transparent policies in place to ensure that the information is not misused in any way, including policies that prohibit direct access to the data to private entities, out-of-state law enforcement agencies, or federal agencies."

Alcala Wood emphasized that the cameras are only mounted in public rights-of-way, have been vital in investigating and solving crimes, and that strict access and auditing protocols are exercised to protect the security of the data.

"Public safety in San Jose remains the city's top priority, and ALPR is one of many tools used responsibly and lawfully to support that mission and we are actively defending the public's interest to continue to utilize these important tools," she said.

San Jose Mayor Matt Mahan and the City Council have largely been unified in their support for the cameras, especially as a crimefighting tool. There does not seem to be any political momentum to remove, deactivate or severely limit the devices, unlike in neighboring cities like [Mountain View](#), [Santa Cruz](#), and jurisdictions under the [Santa Clara County Sheriff's Office](#), following revelations of unauthorized federal access. But Oakland, like San Jose, has [bolstered its support](#) for ALPR use.

Soyfer said one of the goals of the litigation is to build a movement that leads to a higher ruling to broadly curb the surveillance state promoted by the widespread adoption of ALPR cameras. His organization touts how a similar 2024 lawsuit they filed in Norfolk, Virginia achieved the milestone of surviving a government motion to dismiss the case.

"Our ultimate goal is to try to drive these cases up to federal courts and appeals, and ultimately to the Supreme Court," he said, "to try to get a ruling

that will be binding across many states across the entire country."

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This story was originally published April 15, 2026 at 4:47 PM.

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